TITLE 36—PARKS AND FORESTS

Chapter I—National Park Service

PART 1—AREAS ADMINISTERED BY THE NATIONAL PARK SERVICE [1]

DESIGNATION OF FORT RALEIGH NATIONAL HISTORIC SITE, N. C.

Whereas the Congress of the United States has declared it to be a national policy to preserve for the public use historic sites, buildings, and objects of national significance for the inspiration and benefit of the people of the United States; and

Whereas certain lands and historical remains on the northern end of Roanoke Island, Dare County, North Carolina, have been declared by the Advisory Board on National Parks, Historic Sites, Buildings, and Monuments to be of national significance as a portion of the colonial settlement or settlements established in America by Sir Walter Raleigh, 1585–1587; and

Whereas title to the above-mentioned lands and historical remains is vested in the United States, having been donated by the State of North Carolina; and

Whereas an agreement has been made between the Roanoke Island Historical Association and the United States for the annual presentation of Paul Green's celebrated pageant-drama, "The Lost Colony," in the open-air amphitheater on the above-mentioned property:

Now, therefore, I, Alvin J. Wirtz, Acting Secretary of the Interior, under and by virtue of the authority conferred upon the Secretary of the Interior by section 2 of the act of Congress approved August 21, 1935 (49 Stat. 666), do hereby designate the following-described lands, with the historical remains thereon, to be a national historic site having the name "Fort Raleigh National Historic Site":

All of that certain tract or parcel of land located on the northern end of Roanoke Island, Dare County, North Carolina, and bounded as follows, viz:

Beginning at a concrete monument in the Southwest Corner of the A. P. Meakin tract of land and in the North edge of the right of way of N. C. State Highway 34 on the North end of Roanoke Island; running thence North 69 deg. 30 min. West along said Highway 554.0 feet to a concrete monument in the Southeast line of the Dough heirs' tract; thence along the line of said Dough heirs' tract North 7 deg. 15 min. West 786.0 feet to a stake in the edge of Roanoke Sound; thence following the various courses of said Sound in an Easterly direction approximately 1090.0 feet plus or minus to a stake in the Northwest corner of the A. P. Meakin tract of land, said stake being 40.5 feet North of an iron pipe in the A. P. Meakin line; thence along said A. P. Meakin line South 29 deg. 00 min. West 951.0 feet to point of beginning. The above described tract being known as the Fort Tract.

The administration, protection, and development of this national historic site shall be exercised by the National Park Service in accordance with the provisions of the Act of August 21, 1935, *supra*.

Warning is expressly given to all unauthorized persons not to appropriate, injure, destroy, deface, or remove any feature of this historic site.

In witness whereof, I have hereunto set my hand and caused the official seal of the Department of the Interior to be affixed, in the city of Washington, this 5th day of April, 1941.

[SEAL] A. J. WIRTZ,
Acting Secretary of the Interior.

[F. R. Doc. 44–2987; Filed, March 1, 1944; 11:13 a. m.]

[1] Affects tabulation in § 1.13g.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office (Appendix)

[Public Land Order 208]

WYOMING

REVOCATION OF EXECUTIVE ORDER WITHDRAWING PUBLIC LANDS

By virtue of the authority contained in sec. 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6795 of July 26, 1934, withdrawing public lands in Wyoming, pending a resurvey, and heretofore partially revoked, is hereby revoked as to the remainder of the lands affected thereby.

This order shall become effective upon the date of the official filing of the plats of resurvey of the lands involved.

ABE FORTAS,
Acting Secretary of the Interior.

FEBRUARY 23, 1944.

[F. R. Doc. 44–2984; Filed, March 1, 1944; 11:13 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 115-C]

PART 95—CAR SERVICE

FRUIT AND VEGETABLE CARS NOT HELD FOR DIVERSION, RECONSIGNMENT OR ORDERS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 28th day of February, A. D. 1944.

Upon further consideration of the provisions of Corrected Service Order No. 115 (8 F.R. 4266) of April 1, 1943, as amended (8 F.R. 6480; 8 F.R. 13262; 8 F.R. 14224), and good cause appearing therefor:

It is ordered, That: Corrected Service Order No. 115 (8 F.R. 4266) of April 1, 1943, as amended (8 F.R. 6480; 8 F.R. 13262; 8 F.R. 14224) be, and it is hereby, vacated and set aside. (40 Stat. 101, Sec. 402, 41 Stat. 476, Sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10)–(17)).

It is further ordered, That this order shall become effective at 12:01 a. m., March 5, 1944; that a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 44–2978; Filed, March 1, 1944; 10:28 a. m.]

[S. O. 182–A]

PART 95—CAR SERVICE

MOVEMENT OF POTATOES FROM FLORIDA

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 28th day of February, A. D. 1944.

Upon further consideration of Service Order No. 182 (9 F.R. 1729) of February 9, 1944, and good cause appearing therefor:

It is ordered, That:

Service Order No. 182 (9 F.R. 1729) of February 9, 1944, 49 CFR § 95.332, prohibiting the movement of potatoes, other than sweet, from points in the State of Florida to points west of the Mississippi River, north of the Illinois-Wisconsin State line or west or north of Lake Michigan, be, and it is hereby, vacated and set aside. (40 Stat. 101, Sec. 402, 41 Stat. 476, Sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10)–(17))

It is further ordered, That this order shall become effective immediately; that copies of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 44–2979; Filed, March 1, 1944; 10:28 a. m.]

[S. O. 183, Amdt. 1]

PART 95—CAR SERVICE

REDUCTION IN FREE TIME BEFORE ASSESSMENT OF CHARGES

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 28th day of February, A. D. 1944.

Upon further consideration of Service Order No. 183 (9 F.R. 2095) of February 18, 1944, and good cause appearing therefor:

It is ordered, That:

Service Order No. 183 (9 F.R. 2095) of February 18, 1944, 49 CFR § 95.503, be amended by inserting the phrase "or short of" before the word "ports" and after the word "at" in the fifth line of paragraph (e) of § 95.503, and by striking from the last ordering paragraph of said order the clause "That this order shall become effective at 7:00 a. m., March 1, 1944;" and inserting in lieu thereof the following clause: "That this order shall become effective April 6, 1944;". (40 Stat. 101, Sec. 402, 41 Stat. 476, Sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10)–(17)).

It is further ordered, That this order shall become effective at 7:00 a. m., March 1, 1944; that a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 44-2980; Filed, March 1, 1944; 10:28 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service

PART 12—ADMINISTRATION OF NATIONAL WILDLIFE REFUGES: GENERAL REGULATIONS

SALE OF SURPLUS ANIMALS AND PRODUCTS

Under authority of section 10 of the Migratory Bird Conservation Act of February 18, 1929 (45 Stat. 1224; 16 U.S.C. 715i); section 84 of the act of March 4, 1909, as amended April 15, 1924, 43 Stat. 98; 18 U.S.C. 145; and section 401 of the act of June 15, 1935, 49 Stat. 383; 16 U.S.C., Sup., 715s, the following is hereby ordered:

Section 12.17 *Sale of surplus animals and products*[1] is hereby amended by striking out paragraph (b) *Fur animals* and inserting in lieu thereof the following:

(b) *Fur animals.* Under the direction of the Director and subject to such conditions as may be prescribed by him surplus fur animals (1) may be taken by employees of the Service, (2) may be taken under permit issued by the Director or regional director upon such terms and at such rates of charge or at such division of the pelts and/or carcasses as may be determined by the Director to be commensurate with the value of the operation or privilege granted, having due regard to prevailing market values and trapping conditions, or (3) may be taken by public trapping under permit issued by the officer in charge, such trapping to be at such rates of charge, if any, as the Director may determine to be commensurate with the value of the privilege granted, having due regard to prevailing market values and trapping conditions.

The disposition or sale of fur animals and the pelts or carcasses thereof accruing to the United States may be made upon such terms and conditions as the Director shall determine to be for the best interests of the government or for the advancement of knowledge and the dissemination of information regarding wildlife, including but not limited to sale in the open market, exchange for animals of the same or other kinds, and gifts or loans to public or private institutions for exhibition or propagation, or they may be used by the Service for wildlife management and research purposes. The Fish and Wildlife Service, in accordance with regulations governing the employment of persons, may employ for the purpose of taking and disposing of fur animals on the refuges and may pay from refuge receipts, (1) trappers on a fee basis for the pelt of each fur animal trapped or on such other basis as the Director may consider to be equitable, and (2) such inspectors, assistant inspectors, fur handlers, and laborers as may be necessary in the discretion of the Director to supervise and inspect all trapping operations, and to skin, dry, stretch, pack, ship, and sell or otherwise dispose of all fur animal skins and carcasses. The amount of the fee to be paid trappers for each species and classification of fur animals shall be determined by the Director. The compensation of inspectors, assistant inspectors, fur handlers, and laborers may be fixed on an hourly, daily, monthly, or annual basis at such rates as are determined under the usual departmental procedure to be consistent with the duties and responsibilities of the respective positions.

(1) *Trapping permits.* Any person exercising the privilege of trapping within a refuge shall be in possession of a valid trapping permit of the Fish and Wildlife Service as may be required pursuant to this section. He shall carry such permit or evidence thereof on his person while trapping, and when requested to do so, shall exhibit the same to any officer or employee of the Department of the Interior authorized to enforce the game and fish laws of the United States.

(2) *Prohibited methods and acts.* The possession or use within the boundaries of the refuge of a spear or any other similar device by means of which fur animals may be taken, or of any trap or other device that does not comply with the requirements of these regulations or the conditions prescribed by the Director is not permitted, and any illegal traps or other devices found on the refuge may be seized by an authorized representative of the Fish and Wildlife Service. Unless specially authorized by permit, no person shall hunt fur animals with a gun or with the aid of a dog, or disturb or molest any muskrat house, beaver house, beaver dam, or fur-animal den, or set a trap within three feet of any muskrat house or feeding house or fur-animal den, or within one hundred feet of any beaver house or beaver dam. No person shall run a trap line or visit traps between sunset and one-half hour before sunrise.

(3) *Trapped birds and mammals.* Birds and mammals other than those authorized to be trapped that are found alive in the traps of the permittee shall be immediately liberated. Birds and mammals other than those authorized to be trapped that are found dead or mortally injured in the traps shall be immediately turned over to the officer in charge or his representative.

(4) *Forfeiture of privileges.* Failure of any person trapping on the refuge to comply with any of the provisions, conditions, restrictions, or requirements of the regulations in this section, or the violation by him of any provision of Federal laws or regulations applicable to wildlife, not only will render such person liable to prosecution under the law, but also will be sufficient cause for removing him from the refuge and for refusing him further trapping privileges on such refuge or any other use or privilege on any such refuge for which a permit may be required.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

FEBRUARY 24, 1944.

[F. R. Doc. 44-2961; Filed, February 29, 1944; 4:31 p. m.]

[1] 5 F.R. 5286.

Notices

DEPARTMENT OF THE INTERIOR.

Coal Mines Administration.

[Order CMA-23]

LEA BROS. COAL MINING CO. AND STEEL TIPPLE COAL CO.

ORDER TERMINATING GOVERNMENT POSSESSION

I have been advised that no strikes or stoppages have occurred since October 25, 1943 or are threatened in the coal mines of Lea Bros. Coal Mining Co., Rural Route No. 2, Peoria, Illinois, or Steel Tipple Coal Co., Box 52, Eldorado, Illinois. Based on such advice, and after consideration of all the circumstances, I find that the possession by the Government of such mines is not required for the furtherance of the war program.

Accordingly, I order and direct that the possession by the Government of the mines of the said mining companies, including any and all real and personal property, franchises, rights, facilities, funds, and other assets used in connection with the operation of such mines be, and it is hereby, terminated and that there be conspicuously displayed at those mining properties copies of a poster to be supplied by the Coal Mines Administration and reading as follows:

NOTICE: Government possession and control of the coal mines of this mining company have been terminated by order of the Secretary of the Interior.

Instruments of agreement and certification having heretofore been executed and filed with the Coal Mines Adminis-